Westbrook Zoning Board of Appeals

~ Zoning Board of Appeals Meeting ~

Date: Tuesday, May 12, 2026
Time: 7:00 PM
Location: Westbrook High School (Room 114), 125 Stroudwater St. (Hybrid via Zoom)
Video: https://vimeo.com/1191717063
Agenda: No agenda was published for this meeting (checked the City's Agenda Center, Nov. 7, 2026).

Timestamps below are clickable [0:00]-style links — they jump straight to that moment in the video.

This summary highlights the meeting's key discussions and decisions, with direct quotes and timestamps for verification — it is not a substitute for watching the full meeting. *Summarization necessarily condenses and selects; for complete context, nuance, and anything not covered here, watch the full video at the link above. (Produced by: WestbrookCurrents.com)*

Unofficial summary. *This is produced by Westbrook Currents, an independent site — not the City of Westbrook — and may contain mistakes. For the official record, see the City's approved minutes and the meeting video.*

I. Interim Vice Chair & Roll Call

Interim Vice Chair Election & Roll Call [00:43]

Discussion Summary

With Chair Aaron Burns and Vice Chair Keith Richard both absent, City Attorney Gray Lewis opened the meeting and oversaw election of an interim Vice Chair for the night. Cliff McCarthy was nominated and elected, 3 in favor and 1 abstaining. Roll call: Nancy Heath, Sherri Quint, Kevin Moss, and Cliff McCarthy present; Burns, Richard, and Peter Mancuso absent. The Feb. 10, 2026 minutes were then approved, 4–0.

Key Decisions

✓ Cliff McCarthy elected interim Vice Chair, 3–1 (one abstention); Feb. 10, 2026 minutes approved 4–0.

Action Items

None.

Variance Request

96 Hammond Road — Practical Difficulty Variance [03:03]

Tax Map 44, Lot 87, Residential Growth Area 2. Request for a 4.99-foot rear setback variance to allow construction of a 26-by-26-foot attached garage with living space above. Applicant's name rendered inconsistently in the recording as “Erica/Daniel Higginbottom” (agenda item) and “Danielle Hagenbotham” (self-introduction) — see Notes.

Background

The house was built in 1939 and relocated to its current foundation in October 2005, per a building permit referenced during the hearing, when the original larger parcel was subdivided so a new house could be built on the adjoining lot. Code Enforcement Officer (CEO) Brian Stetson testified the house appears to have been sited

to align with the curve of the street rather than squarely within the new, smaller lot's boundaries, leaving it angled in a way that now makes a conventional rear addition impossible without a setback variance. The current owners, who bought the property in 2018, are requesting the variance to accommodate their growing family.

The applicant's case

The applicant testified the addition would let the family stay in a house and neighborhood they love rather than move; she had discussed the project informally with both abutting neighbors by text message (not formal letters), both of whom indicated support — one noted the addition would actually increase their own backyard privacy. She described considering alternatives (a smaller footprint, an angled addition, converting the existing deck) and concluded the lot's shape and the house's angled placement meant some setback intrusion was unavoidable. She cited a comparable, previously approved variance nearby and noted most neighborhood homes already have garages.

Board discussion and the seven-part standard

City Attorney Lewis walked the board through Westbrook's “practical difficulty” variance standard: strict enforcement must cause a practical difficulty (precluding a permitted use and significant economic injury), plus six further criteria — unique property circumstances (not general neighborhood conditions); no undesirable change to neighborhood character or harm to abutting property values; the difficulty isn't the result of the applicant's or a prior owner's own actions; no feasible alternative exists; no adverse effect on the natural environment; and the property isn't within a shoreland area. The board briefly realized partway through that it had skipped the “prior owner's actions” criterion and circled back to it, debating whether the 2005 relocation (apparently aligned to the street rather than the new lot lines) counted as a disqualifying prior action; the board concluded it read as an oversight rather than an intentional choice, and that the criterion should be read to mean an intentional act. CEO Stetson confirmed no neighbor complaints had been received and the property isn't in a resource-protection or shoreland zone.

All seven criteria were found met, each by a 4–0 show of hands (criteria one through six by formal poll; the seventh, on shoreland location, confirmed by informal consensus without a separate formal vote). The board then approved the variance by unanimous voice vote, with no dissent recorded.

Key Decisions

✓ All seven variance criteria found met, 4–0 each.

✓ Variance approved by unanimous voice vote.

Action Items

• Board authorized interim Vice Chair Cliff McCarthy to review and sign off on written Findings of Fact and Conclusions of Law once drafted by City Attorney Lewis, rather than reconvening the board. The appeal window begins once the signed decision is issued.

• City Attorney Lewis to follow up on whether the applicant must register the variance with the Cumberland County Registry of Deeds within a set window; he did not have a definitive answer on the record.

How this was made

This summary was produced from the meeting video (linked above). The audio was transcribed with AI-assisted speech-to-text and speaker identification. This process cross-checked names against the official Zoning Board of Appeals roster, attributed speakers from context (self-identification, direct address, roll-call order, and consistency with this pipeline's established recurring staff roles) rather than the raw diarization labels alone, and drafted this summary and the quoted excerpts. No agenda was published for this meeting; it was processed from the video/transcript alone per this pipeline's standing practice for meetings with no published agenda. This meeting is unrelated to the Feb. 10, 2026 Zoning Board of Appeals meeting's 640 Saco Street appeal. Review tier: Not reviewed.

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